

# ScanOrbit — Legal Compliance Checklist

Eenmanszaak (Sole Proprietorship) • Netherlands • SaaS Business

Last updated: March 2026

## Current Status

This document tracks all legal, tax, and compliance obligations for operating ScanOrbit (scanorbit.cloud) as an eenmanszaak registered in the Netherlands. It serves as both a status overview and an action checklist.

|                     |                                   |
|---------------------|-----------------------------------|
| Legal structure     | Eenmanszaak (sole proprietorship) |
| KVK registration    | Active                            |
| BTW (VAT) number    | Active                            |
| Stripe live account | Active, Dutch VAT configured      |
| Subscribers         | 1 (self, for testing)             |
| Revenue to date     | €0                                |
| Domain              | scanorbit.cloud                   |
| Hosting location    | Amsterdam, NL (EU)                |

## 1. Business Registration & Structure

These are the foundational items required to legally operate an eenmanszaak in the Netherlands.

| Item                                          | Status | Deadline              | Notes                                                                                        |
|-----------------------------------------------|--------|-----------------------|----------------------------------------------------------------------------------------------|
| KVK registration (Handelsregister)            | ✓ Done | At start              | 8-digit KVK number obtained                                                                  |
| BTW-identificatienummer received              | ✓ Done | At start              | NL + 9 digits + B + 2 digits                                                                 |
| Trade name registered at KVK                  | ✓ Done | At start              | Must match invoices exactly                                                                  |
| Separate business bank account                | Check  | Recommended           | Not legally required, but strongly advised for clean bookkeeping                             |
| Business address registered/shielded          | Check  | At start              | Consider shielding home address via postal address at KVK                                    |
| Business insurance (beroepsaansprakelijkheid) | To do  | Before first customer | Professional liability insurance — covers claims from customers; critical for SaaS since you |

|  |  |  |                       |
|--|--|--|-----------------------|
|  |  |  | are personally liable |
|--|--|--|-----------------------|

## 2. Tax Obligations

### 2.1 BTW / VAT

As a VAT-registered sole proprietor selling digital services (SaaS), you must charge, collect, and remit BTW.

| Item                                        | Status          | Deadline                            | Notes                                                                                                                     |
|---------------------------------------------|-----------------|-------------------------------------|---------------------------------------------------------------------------------------------------------------------------|
| Charge 21% BTW on B2C sales to NL customers | Ready           | Per invoice                         | Stripe Tax can handle this automatically                                                                                  |
| B2B reverse charge for EU customers         | To configure    | Before first EU B2B sale            | Do not charge BTW; customer self-accounts; invoice must state "BTW verlegd"                                               |
| B2C sales to other EU countries             | To configure    | Before first non-NL EU B2C sale     | Charge destination-country VAT rate; consider OSS registration if cross-border B2C exceeds €10,000/year                   |
| Non-EU customer sales                       | To configure    | Before first non-EU sale            | No BTW charged; invoice states service is outside EU VAT scope                                                            |
| File quarterly BTW return                   | Recurring       | Last day of month after quarter end | Q1: Apr 30, Q2: Jul 31, Q3: Oct 31, Q4: Jan 31                                                                            |
| Opgaaf ICP (EC Sales List)                  | When applicable | Quarterly                           | Required when selling B2B to other EU countries; filed via Belastingdienst portal                                         |
| KOR exemption evaluation                    | N/A currently   | Annual                              | If annual turnover stays below €20,000, you may opt into KOR to stop charging BTW — but then you cannot reclaim input VAT |

### 2.2 Income Tax (Inkomstenbelasting)

Business profit from the eenmanszaak is declared in your personal income tax return under Box 1.

| Item                                                        | Status    | Deadline               | Notes                                                                   |
|-------------------------------------------------------------|-----------|------------------------|-------------------------------------------------------------------------|
| File annual income tax return (aangifte inkomstenbelasting) | Recurring | Before May 1 each year | Declare ScanOrbit profit in Box 1; can request extension to September 1 |

|                                                     |                   |                             |                                                                                             |
|-----------------------------------------------------|-------------------|-----------------------------|---------------------------------------------------------------------------------------------|
| Claim zelfstandigenaftrek (self-employed deduction) | Check eligibility | Annual                      | €2,470 (2025); requires meeting the hours criterion (1,225 hours/year on the business)      |
| Claim startersaftrek (starter deduction)            | Check eligibility | First 3 years               | €2,123 additional deduction; available first 3 years if you qualify for zelfstandigenaftrek |
| Claim MKB-winstvrijstelling (SME profit exemption)  | Automatic         | Annual                      | 12.7% deduction from gross profit; applied automatically if you qualify                     |
| Track business expenses                             | Ongoing           | Continuous                  | Server costs, domain, Stripe fees, software subscriptions, marketing — all deductible       |
| Provisional tax assessment (voorlopige aanslag)     | Check             | After first profitable year | Belastingdienst may issue provisional assessments; pay in monthly installments              |

## 2.3 Stripe & Payment Tax Configuration

| Item                                    | Status       | Deadline                     | Notes                                                                                 |
|-----------------------------------------|--------------|------------------------------|---------------------------------------------------------------------------------------|
| Stripe live account active              | ✓ Done       | At start                     | Dutch entity configured                                                               |
| Dutch VAT registration in Stripe Tax    | ✓ Done       | At start                     | Stripe charges correct BTW rates                                                      |
| Stripe invoices include required fields | To verify    | Before first paying customer | KVK number, BTW-ID, sequential invoice number, your registered trade name and address |
| Stripe Checkout shows VAT correctly     | To verify    | Before first sale            | Test with NL, EU, and non-EU addresses                                                |
| Credit note / refund process            | To configure | Before first sale            | Stripe credit notes must reference original invoice number                            |

## 3. Invoicing Requirements

Dutch law (Wet op de omzetbelasting + Handelsregisterwet) requires specific fields on every invoice. Stripe generates invoices automatically, but you must verify they contain all mandatory elements.

### 3.1 Mandatory Invoice Fields

- ☐ Your registered trade name (exact KVK name)
- ☐ Your business address
- ☐ Your KVK number (8 digits)
- ☐ Your BTW-identificatienummer (not the OB-nummer)
- ☐ Customer name and address
- ☐ Customer VAT number (for EU B2B sales)
- ☐ Sequential, unique invoice number
- ☐ Invoice date
- ☐ Date of supply (if different from invoice date)
- ☐ Clear description of the service (e.g., "ScanOrbit Pro — monthly subscription")
- ☐ Unit price excluding VAT
- ☐ Total amount excluding VAT
- ☐ VAT rate applied (21% for NL)
- ☐ VAT amount
- ☐ Total amount including VAT
- ☐ "BTW verlegd" notation (for reverse-charge B2B)
- ☐ Payment terms (e.g., due within 14 days)

### 3.2 Invoice Timing & Retention

- Issue invoices no later than the 15th of the month following the supply
- Retain all invoices (sent and received) for 7 years
- Digital invoices via email are legally valid in the Netherlands
- Use sequential numbering without gaps (e.g., SO-2026-001, SO-2026-002)

## 4. Bookkeeping (Administratieplicht)

Dutch law requires sole proprietors to maintain a complete financial administration. This is your legal obligation regardless of revenue size.

| Item                      | Status | Deadline     | Notes                    |
|---------------------------|--------|--------------|--------------------------|
| Choose bookkeeping method | To do  | Before first | Options: software (e.g., |

|                                          |             |                   |                                                                     |
|------------------------------------------|-------------|-------------------|---------------------------------------------------------------------|
|                                          |             | income            | Moneybird, e-Boekhouden), spreadsheet, or hire a boekhouder         |
| Record all business income               | Ongoing     | Continuous        | Stripe payouts, any other revenue                                   |
| Record all business expenses             | Ongoing     | Continuous        | Server, domain, subscriptions, Stripe fees, marketing costs         |
| Separate business from personal finances | Recommended | At start          | Separate bank account makes this much easier                        |
| Retain financial records for 7 years     | Ongoing     | Continuous        | Invoices, receipts, bank statements, contracts                      |
| Annual balance sheet and P&L             | Recurring   | Before tax filing | Required for income tax return; bookkeeping software generates this |

## 5. GDPR & Privacy Compliance (AVG)

ScanOrbit processes personal data (user accounts, email addresses, IP addresses, audit logs) and accesses customer AWS infrastructure metadata. GDPR compliance is both a legal requirement and a core product differentiator.

### 5.1 Legal Documents on Website

| Document                      | Status              | Deadline                   | Notes                                                                                                                                                                                                                                                          |
|-------------------------------|---------------------|----------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Privacy Policy                | To verify / publish | Before first external user | Must cover: what data you collect, legal basis, retention periods, third-party processors (Stripe, Resend, Google/GitHub OAuth), user rights (access, rectification, erasure, portability), contact details, complaint procedure (Autoriteit Persoonsgegevens) |
| Terms of Service              | To verify / publish | Before first external user | Covers: license grant, acceptable use, liability limitation, subscription terms, refund policy, termination, governing law (Dutch)                                                                                                                             |
| Cookie Policy / Cookie Banner | To verify           | Before first external user | Required under Dutch Telecommunicatiewet; must get opt-in consent for non-essential cookies (analytics, marketing); essential cookies exempt                                                                                                                   |

|                                 |          |                              |                                                                                                             |
|---------------------------------|----------|------------------------------|-------------------------------------------------------------------------------------------------------------|
| Data Processing Agreement (DPA) | To draft | Before first paying customer | You act as data processor for customer AWS data; customers may request a DPA; standard template recommended |
|---------------------------------|----------|------------------------------|-------------------------------------------------------------------------------------------------------------|

## 5.2 GDPR Operational Requirements

| Item                                   | Status         | Deadline                   | Notes                                                                                                                                                                                  |
|----------------------------------------|----------------|----------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Record of Processing Activities (RoPA) | To create      | Before first external user | Document all processing activities: what data, purpose, legal basis, retention, recipients; not always mandatory for <250 employees but strongly recommended for a data-intensive SaaS |
| Data retention policy documented       | Partially done | Before first external user | You have retention periods in code (90d resources, 180d findings, 365d scans, 730d audit logs); document these in your privacy policy                                                  |
| Right to Erasure implemented           | Done (code)    | Before first external user | 30-day grace period + permanent deletion; verify it works end-to-end                                                                                                                   |
| Right to Data Portability implemented  | Done (code)    | Before first external user | JSON export of user data; verify it works end-to-end                                                                                                                                   |
| Consent tracking (ToS + marketing)     | Done (code)    | Before first external user | Verify consent is recorded with timestamp                                                                                                                                              |
| Data breach notification procedure     | To document    | Before first external user | Must notify Autoriteit Persoonsgegevens within 72 hours of becoming aware of a breach; notify affected users if high risk                                                              |
| Sub-processor list documented          | To do          | Before first external user | List all third parties that process personal data: Stripe, Resend, Scaleway (backups), Google OAuth, GitHub OAuth; include in privacy policy or separate page                          |

## 6. Consumer Protection & E-commerce Law

If you sell to consumers (B2C), EU and Dutch consumer protection rules apply. These are especially relevant for your Free and Pro tiers where individual users sign up directly.

| Item                                            | Status     | Deadline              | Notes                                                                                                                                                                                                                     |
|-------------------------------------------------|------------|-----------------------|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| 14-day cooling-off period (right of withdrawal) | To address | Before first B2C sale | EU Distance Selling Directive: consumers can cancel within 14 days of purchase; for digital services, you can request waiver of this right if user consents to immediate access and acknowledges loss of withdrawal right |
| Pre-contractual information                     | To verify  | Before first sale     | Before checkout, display: total price incl. VAT, subscription terms (monthly/annual), renewal and cancellation policy, your business identity and contact details                                                         |
| Confirmation email after purchase               | To verify  | Before first sale     | Must send order confirmation with all contract terms; Stripe receipts may cover this but verify completeness                                                                                                              |
| Clear cancellation process                      | To verify  | Before first sale     | Users must be able to cancel subscription easily; Stripe customer portal handles this but ensure it is accessible                                                                                                         |
| Complaints procedure                            | To add     | Before first sale     | Provide contact email for complaints; consider referencing the European ODR platform ( <a href="https://ec.europa.eu/odr">ec.europa.eu/odr</a> ) if selling B2C                                                           |

## 7. Digital Services Act (DSA)

The EU Digital Services Act applies to all online intermediaries. As a SaaS platform, ScanOrbit falls under the lightest tier of obligations. The main requirements at your scale are transparency and a point of contact.

| Item                                    | Status       | Deadline              | Notes                                                               |
|-----------------------------------------|--------------|-----------------------|---------------------------------------------------------------------|
| Single point of contact for authorities | To designate | Now (DSA is in force) | Publish an email address for regulatory authorities on your website |
| Transparency on ToS                     | To verify    | Now                   | Terms must be clear, in plain language, and easily accessible       |

## 8. Insurance

As an eenmanszaak, you are personally liable for all business debts and claims. Insurance is not legally required but is strongly advised to limit your risk exposure.

| Item                                                          | Priority          | Status         | Notes                                                                                                                                                   |
|---------------------------------------------------------------|-------------------|----------------|---------------------------------------------------------------------------------------------------------------------------------------------------------|
| Beroepsaansprakelijkheidsverzekering (professional liability) | High              | To do          | Covers claims from customers if your service causes them damage (e.g., missed security finding leads to a breach); typical cost €200–€600/year for SaaS |
| Bedrijfsaansprakelijkheidsverzekering (general liability)     | Medium            | To do          | Covers general business liability; often bundled with professional liability                                                                            |
| Cyber / data breach insurance                                 | Medium            | Consider later | Covers costs of data breaches, notification, legal fees; more relevant once you have paying customers                                                   |
| Arbeidsongeschiktheidsverzekering (disability)                | Personal decision | To evaluate    | No social safety net as a ZZP-er; covers income if you cannot work due to illness/injury                                                                |

## 9. Intellectual Property

| Item                               | Status      | Deadline          | Notes                                                                                                                           |
|------------------------------------|-------------|-------------------|---------------------------------------------------------------------------------------------------------------------------------|
| Trademark registration (ScanOrbit) | To consider | Optional          | Register via BOIP (Benelux) or EUIPO (EU-wide); protects the name; Benelux costs ~€244, EUIPO ~€850                             |
| Domain ownership verified          | ✅ Done      | At start          | scanorbit.cloud registered and active                                                                                           |
| Open-source license compliance     | To verify   | Before first sale | Audit all npm/pip dependencies for license compatibility; ensure no copyleft licenses conflict with your proprietary SaaS model |



## 10. Priority Action Plan

Actions ordered by urgency. Complete these before your first external paying customer.

### 10.1 Do Immediately (Before First Customer)

- ☐ **CRITICAL** Publish Privacy Policy on scanorbit.cloud
- ☐ **CRITICAL** Publish Terms of Service on scanorbit.cloud
- ☐ **CRITICAL** Implement cookie consent banner (opt-in for non-essential cookies)
- ☐ **CRITICAL** Verify Stripe invoices contain all mandatory Dutch fields (KVK, BTW-ID, sequential number, trade name, address)
- ☐ **CRITICAL** Test Stripe Checkout VAT handling for NL, EU, and non-EU addresses
- ☐ **CRITICAL** Set up bookkeeping system (even a spreadsheet to start)
- ☐ **HIGH** Document sub-processor list (Stripe, Resend, Scaleway, Google, GitHub)
- ☐ **HIGH** Test Right to Erasure and Data Portability flows end-to-end
- ☐ **HIGH** Draft a basic Data Processing Agreement template
- ☐ **HIGH** Add 14-day withdrawal waiver consent to checkout flow (EU consumer protection)

### 10.2 Do Within First Month of Revenue

- ☐ **HIGH** Get professional liability insurance (beroepsaansprakelijkheid)
- ☐ **MEDIUM** Create Record of Processing Activities (RoPA)
- ☐ **MEDIUM** Document data breach notification procedure
- ☐ **MEDIUM** Verify pre-contractual information is displayed before checkout
- ☐ **MEDIUM** Add complaints procedure and ODR platform link to website
- ☐ **MEDIUM** Evaluate whether you meet the urencriterium for zelfstandigenaftrek

### 10.3 Do Within First Quarter

- ☐ **REQUIRED** File first BTW return (quarterly, even if zero)
- ☐ **RECOMMENDED** Open separate business bank account if not done
- ☐ **OPTIONAL** Consider trademark registration for ScanOrbit
- ☐ **RECOMMENDED** Audit open-source license compliance
- ☐ **PERSONAL** Evaluate disability insurance (AOV)

### 10.4 Annual Recurring

- ☐ File income tax return before May 1
- ☐ File 4 quarterly BTW returns
- ☐ Review and update Privacy Policy and Terms of Service
- ☐ Review Stripe Tax configuration (rates may change)

- ☐ Review insurance coverage
- ☐ Verify KVK registration details are still current
- ☐ Back up and archive financial records

## 11. Key Contacts & Resources

| Organization                            | Purpose / URL                                                                                                                       |
|-----------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------|
| <b>Belastingdienst</b>                  | Tax filings, BTW returns — <a href="https://belastingdienst.nl">belastingdienst.nl</a>                                              |
| <b>KVK (Kamer van Koophandel)</b>       | Business registration, changes — <a href="https://kvk.nl">kvk.nl</a>                                                                |
| <b>Autoriteit Persoonsgegevens (AP)</b> | Data protection authority, breach notifications — <a href="https://autoriteitpersoonsgegevens.nl">autoriteitpersoonsgegevens.nl</a> |
| <b>Stripe Dashboard</b>                 | Payment management, tax settings, invoices — <a href="https://dashboard.stripe.com">dashboard.stripe.com</a>                        |
| <b>BOIP (Benelux IP Office)</b>         | Trademark registration — <a href="https://boip.int">boip.int</a>                                                                    |
| <b>European ODR Platform</b>            | Consumer dispute resolution — <a href="https://ec.europa.eu/odr">ec.europa.eu/odr</a>                                               |
| <b>MijnBelastingdienst Zakelijk</b>     | Online portal for BTW filing — <a href="https://mijn.belastingdienst.nl">mijn.belastingdienst.nl</a>                                |

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### Disclaimer

This document is for planning and tracking purposes only. It is not legal or tax advice. Dutch tax law, GDPR requirements, and consumer protection rules are complex and subject to change. Consult a qualified Dutch tax advisor (belastingadviseur) and/or lawyer for advice specific to your situation. In particular, seek professional guidance before your first paying customer to ensure your Terms of Service, Privacy Policy, and tax configuration are fully compliant.